

25STCV11842 25STCV11842

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-07-17

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Case Number: 25STCV11842 Hearing Date: July 17, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT 17

TENTATIVE

RULING

JUAN SALAS, et al.

vs.

ZACKARY G. BEAUCHAMP, et al.

Case

No.: 25STCV11842

Hearing Date: July 17, 2026

Defendants' demurrer is OVERRULED. Defendants' motion to strike is DENIED.

On

4/23/2025, Plaintiffs Juan Salas, Jeannette Zepeda, and Alyssa Salas, a minor, by and through her guardian ad litem, Juan Salas (collectively, Plaintiffs) initiated this action against Zackary G. Beauchamp, Rafael V. Ferrer, and 3014 9th Avenue, Los Angeles LLC. On 7/9/2025, Plaintiffs filed a first amended complaint (FAC), alleging: (1) breach of contract; (2) breach of

implied warranty of habitability; (3) intentional infliction of emotional distress (IIED); (4) negligence; (5) nuisance; (6) wrongful eviction; and (7) violation of Civil Code section 1942.4.

On

3/9/2025, Defendants demurred to Plaintiffs' FAC. Defendants also moved to strike portions of Plaintiffs' FAC.

Discussion

Defendants

argue that Plaintiffs' FAC is defective as it fails to join indispensable parties. Defendants further argue that Plaintiffs' IIED claim is insufficiently pled.

As

to the first contention, Plaintiffs specifically allege that non-parties Nabor Galvez, Corina Galvez, and Erika Valencia (the "Original Owners" or "prior owners") owned the property before moving Defendants owned and managed it, that Plaintiffs signed a lease with the Original Owners and lived at the property before moving Defendants owned and managed it, and that habitability violations existed at the property during Plaintiffs' tenancy when the property was owned by the Original Owners. (FAC, ¶¶10-14, and 26.) Plaintiffs allege that moving Defendants Beauchamp and Ferrer bought the property from the Original Owners subject to Plaintiffs' lease and tenancy. (FAC ¶¶15-16.) Plaintiffs also allege that non-party Alex Brown (the "Property Manager") managed the property during Plaintiffs' tenancy, and supervised maintenance staff and repairs there. (FAC, ¶24.) Plaintiffs allege that, throughout their occupancy, they informed Alex Brown, among others, of the poor conditions at the property, but the conditions were not remediated. (FAC, ¶¶51-52.)

As such, Plaintiffs' FAC states facts sufficient to allege that non-parties the Original Owners and Alex Brown have liability for the alleged habitability violations and conditions at the property. Moreover, as noted by Defendants, Plaintiffs allege facts sufficient to support moving Defendants' right to indemnification from the Original Owners and Alex Brown, in whole or part, for liability that the moving Defendants may have to Plaintiffs.

However, as noted by Plaintiffs,

these facts show that "the prior owners and property manager are, at most, alleged concurrent tortfeasors and permissive parties whom Plaintiffs were free

not to sue; they are not indispensable, and Defendants' remedy, if they believe others share responsibility, is a cross-complaint for indemnity, not dismissal of Plaintiffs' case." (Opp., 3: 18-21.)

As for the second contention, the Court finds that whether or not the habitability issues alleged could be extreme or outrageous is a factual determination not properly made at this stage.

Based on the foregoing, Defendants' demurrer is overruled.

Motion
to Strike

Defendants move to strike Plaintiffs' prayer for punitive damage and attorney fees.

As to punitive damages, Plaintiffs have alleged operative claims for IIED and wrongful eviction. Accordingly, Plaintiffs have necessarily alleged facts which could show despicable conduct with willful and conscious disregard of the rights or safety of others. (Civ. Code § 3294, subd. (c)(1).)

As for attorney fees, Defendants move to strike Plaintiffs' request for attorneys' fees, contending that the Lease Agreement makes a pre-suit request to mediate a condition precedent to recovering attorney's fees, and that Plaintiffs "do not and cannot truthfully allege" any attempt to mediate. In paragraph 66 of the FAC, Plaintiffs clearly allege that they "have substantially performed all material conditions, covenants, and promises required on their part to be performed in accordance with the terms and conditions of the Lease Agreement." (FAC ¶ 66.) Plaintiffs' compliance with all material terms would include complying with the pre-suit mediation request as required under the Lease Agreement, and the Court accepts well-pled allegations as true at the pleadings stage.

Based on the foregoing, Defendants' motion to strike is denied.

It is so
ordered.

Dated:

July , 2026

Hon. Jon R. Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.